Brazoria County District Court

Cause No. 2025-CV-0045

Tracy Edwards, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	February 16, 2025
Plaintiff's counsel:	Stephanie Thomas, Mendez & Graham LLP

PARTIES

Plaintiff Tracy Edwards is an individual residing in Texas who was injured in the motor vehicle collision described below. Defendant is an automobile insurance company authorized to tarnsact business in the State of Texas, which issued the policy under which Plaintiff seeks benefits and against which this action is brought.

FACTS

On April 15, 2024, Plaintiff was lawfully stopped in traffic in Pearland when another vehicle struck the rear of Plaintiff's vehicle at a speed sufficient to push it forward. The impact was a rear-end collision that occurred without any fault on the part of Plaintiff. Following the collision, Plaintiff reported the loss to Defendant and submitted the information Defendant requested. Despite this, Defendant has not paid the benefits owed under the policy in a timely and reasonable manner, and has not offered a fair settlement of the claim.

NEGLIGENCE

The driver of the striking vehicle failed to keep a proper lookout, failed to control speed, and failed to stop in time to avoid colliding with the stopped vehicle, which constitutes negligence under Texas law. Defendant, as the insurer responsible for the coverage at issue, owed Plaintiff a duty of good faith and fair dealing in the investigation, evaluation, and payment of the claim. Defendant breached that duty by failing to conduct a reasonable investigation, by delaying payment without a reasonable basis, and by failing to promptly communicate the status of the claim, in violation of the Texas Insurance Code.

DAMAGES

As a direct result of the collision, Plaintiff suffered a back strain that has caused pain, stiffness, limited movement, and the need for medical treatment and time away from ordinary activities. Plaintiff has incurred medical expenses and lost wages and will likely incur future medical care. Plaintiff seeks recovery of all economic and non-economic damages allowed by Texas law, together with statutory penalties and attorney's fees. Plaintiff demands judgment against Defendant in the amount of $197,000.00, plus pre-judgment and post-judgment interest and costs of court.